

Tentative Rulings for Department 501

Begin at the next page

(20)

Tentative Ruling

Re: **Cabral v. Spacotel LLC**
Superior Court Case No. 25CECG01086

Hearing Date: July 2, 2026 (Dept. 501)

Motion: By Motorola Mobility, LLC, to Compel Production of Plaintiff's
Cellular Phone for Inspection

Tentative Ruling:

To deny to the extent Motorola Mobility, LLC ("Motorola") seeks an order directing the inspection to occur in Chicago, and excluding plaintiff and/or her representative from being present at the inspection. The parties are directed to meet and confer on an inspection to take place in California.

Explanation:

In this personal injury action plaintiff alleges that her cell phone exploded and caused significant injuries. Motorola served a demand to conduct non-destructive testing on the phone at its facility in Chicago, Illinois, though it has a facility in Sunnyvale, California. Motorola also seeks to preclude plaintiff or her representative from being present during the inspection based on claims of confidential/proprietary information that may be seen at the Chicago facility.

Following a pretrial discovery conference, the court authorized Motorola to file a motion to compel "on the sole issue of whether the phone needs to be transported to Chicago or whether the visual inspection can be done in Sunnyvale." (See 3/27/2026 Order, emphasis added.)

The Civil Discovery Act permits a party to demand inspection, copying, testing, or sampling of tangible things in another party's possession, custody, or control. (Code Civ. Proc., § 2031.010.) Such a demand must specify: (1) a *reasonable* time, (2) a *reasonable* place, (3) the inspection, copying, testing, sampling, or related activity being demanded, (4) the manner in which that activity will be performed, and (5) whether the activity will permanently alter or destroy the item involved. (Code Civ. Proc., § 2031.030, subd. (c)(2)-(4).)

On the issue of whether the inspection needs to occur in Chicago, the sole issue that should be addressed in this motion, Motorola hardware engineer John Ricci states in his declaration, "non-destructive inspection of the Subject Device ... includes visual inspection, photographing, videotaping, x-raying, and other non-destructive testing ..." Motorola must use the specialized equipment and machinery located in its workspace at 222 West Merchandise Mart Plaza, Suite 1800, Chicago, Illinois 60654. Motorola has trained and experienced employees who also work at this location and regularly use this equipment and machinery." (Ricci Decl., ¶ 3.) The "Motorola location in Sunnyvale, California, ... does not possess the same technology or machinery required" to perform

the testing. (Ricci Decl., ¶ 4.) That is all the detail and specifics provided. Which is to say, no details or specifics are provided.

Mr. Ricci's declaration is too vague to justify sending the phone out-of-state, with the attendant expense of plaintiff's expert and/or attorney traveling to attend the inspection. Mr. Ricci does not specify what specialized equipment and machinery is at the Chicago facility that does not exist in California. There is no specific factual showing that Motorola's personnel could not use the equipment at its facility in Sunnyvale, at plaintiff's expert's facility (which has been offered for the inspection) or some other facility in California. The inspection includes "visual inspection, photographing, videotaping, x-raying, and other non-destructive testing ..." Which of these cannot be performed anywhere but Motorola's Chicago facility, and why? Plaintiff has already obtained and shared with Motorola CT data, but there is no indication that Motorola has reviewed it, and what more is needed. The court finds that Motorola has not shown that its Chicago facility is a "reasonable place," and therefore the motion is denied in that Motorola demands that plaintiff mail the phone to Chicago. Chicago is not a reasonable place because it would be very costly for plaintiff to pay for her expert to travel to Chicago to observe the inspection of the phone.

The motion also addresses whether plaintiff or her representative/expert should be permitted to observe the inspection at Motorola's Chicago facility. The issue is moot in light of the finding that Chicago is not a reasonable place, and is outside the scope of the permitted motion. Even if Chicago were a reasonable place, Motorola has not shown that any harm would come from permitting plaintiff or her representative to observe the inspection.

Mr. Ricci states that the Chicago facility "contains various and numerous other machinery and internal corporate operations that are sensitive and confidential in nature to Motorola. Access to the Chicago facilities is highly restricted, and only employees with special clearance or a required escort are permitted to enter. Motorola cannot risk being subjected to the viewing of said items by Plaintiff, her attorneys, or by any nonMotorola third parties as they would be able to see and/or learn of potentially proprietary, confidential and/or trade information of Motorola. Allowing said persons to view the inspection of the Subject Device (whether in person or remotely) would constitute a serious and grave invasion of Motorola's privacy and confidential business operations." (Ricci Decl., ¶ 5.) This claim is quite vague and nonspecific. No clear information is submitted to the court showing what sensitive information or equipment would be visible, why plaintiff or her representatives would have any interest in such proprietary information¹, and why Motorola's concerns could not be satisfied with a protective order.² No good cause is shown to prevent plaintiff or her representative from observing the inspection, even if it were to occur in Motorola's Chicago facility.

¹ This is not a lawsuit between competitors. And as the reply points out, plaintiff's expert does not work in the cellular phone industry.

² The court may order that confidential commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way. (Code Civ. Proc., § 2031.060, subd. (b)(5).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 07/01/26
(Judge's initials) (Date)